

34. Staff of the Tribunal :- (1) The Tribunal may, with the previous approval of the Central Government, appoint such officers and employees as it considers necessary for the efficient discharge of its functions under this Chapter.

(2) The terms and conditions of service of the officers and employees of the Tribunal shall be such as may be determined by regulations.

Comment

Section 34 provides that the Tribunal may, with the previous approval of the Central Government, appoint officers and employees for the efficient discharge of its functions under Chapter VII.

35. Sittings of the Tribunal. :- The Tribunal may sit at such place or places as it may find convenient for the transaction of its business.

Comment

Section 35 lays down that the Tribunal may sit at such places as it may find convenient.

36. Complaints against a railway administration :- Any complaint that a railway administration -

- (a) is contravening the provisions of Sec. 70; or
- (b) is charging for the carriage of any commodity between two stations a rate which is unreasonable; or
- (c) is levying any other charge which is unreasonable,

may be made to the Tribunal, and the Tribunal shall hear and decide any such complaint in accordance with the provisions of this Chapter.

Comments

Section 36 provides for the nature of complaints against a railway administration which may be made to the Tribunal.

Jurisdiction of Claims Tribunal:- The jurisdiction on the subject matter about reasonability of the charges and its jurisdiction under the Goods Tariff, which was the part of the agreement, were the questions which fall exclusively within the jurisdiction of the Tribunal. Therefore, the relief on refund also could not have been granted, as before granting it, the Civil Court would have been required to encroach upon the exclusive jurisdiction given to the Tribunal under Sec. 41 (Sec. 36 new) of the Act.